

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLHOS

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDING AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF JEAN A. MAXWELL, M.A., LPC, LICENSE NO. 713,

Respondent.

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Jean A. Maxwell, M.A., LPC ("Respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on April 17, 1993. Respondent has been licensed to practice professional counseling since that date and was so licensed at times relevant to this stipulation and order. Respondent holds license number 713.
3. On or about June 25, 1993 and November 2, 1994 the Board received complaints alleging that respondent had engaged in activities prohibited by the Colorado Mental Health Statute by engaging in dual relationships and acting in a manner which did not meet generally accepted standards of practice.
4. Following an investigation of the complaint, the Board determined that reasonable grounds existed to initiate disciplinary action regarding respondent's practice of professional counseling and psychotherapy.
5. The Board therefore authorized it legal, the Colorado Attorney General to initiate disciplinary action regarding respondent's practice of professional counseling and psychotherapy.
6. Respondent understands he has the right to a formal disciplinary hearing, pursuant to § 12-43-705, C.R.S. (1991), with respect to the complaint filed against him. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to a hearing; agrees to surrender his license as a Professional Counselor in the State of Colorado; relieves the Board of its burden of proving the

facts and conduct contained in the complaint; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that, pursuant to § 12-43-705(5), C.R.S. (1991), he has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

7. The Board and respondent wish to avoid the cost and time associated with full litigation of this matter and therefore enter into this stipulation and order. Respondent does not admit the allegations in the complaints against him and his execution of this stipulation and order does not constitute an admission of a violation.

8. Respondent admits and agrees that he hereby freely and voluntarily surrenders his license to practice as a Professional Counselor in the State of Colorado.

9. This document shall become a Final Board Order on acceptance and signature by the Board.

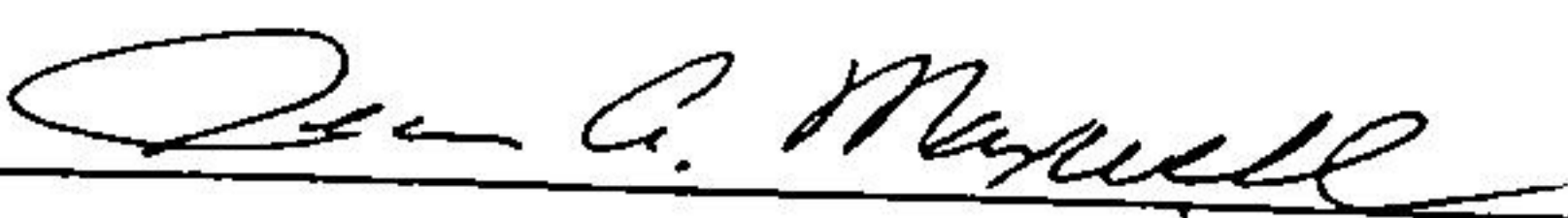
10. Respondent enters into this stipulation and order voluntarily, without coercion, and after being fully advised both as to his right to a hearing and as to the consequences of this stipulation and order.

11. The Board order resulting from this stipulation and order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to § 12-43-705, C.R.S. (1991); § 24-4-105, C.R.S. (1988); and the Board's rules.

12. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

13. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.

14. This stipulation and order is a public record.



JEAN A. MAXWELL, M.A., LPC
Respondent

Subscribed and sworn to before me in the County of Denver,
State of Colorado, this 17th day of November, 1995.

CLAUDIA A. COOPER
NOTARY PUBLIC
STATE OF COLORADO

My Commission Expires

Nov 15, 1998
My Commission Expires:

11-15-98

Claudia A. Cooper
NOTARY PUBLIC

ACCEPTED, SIGNED, AND ORDERED this 28th day of November, 1995.

COLORADO STATE GRIEVANCE BOARD

Daniel R. Robinson
By: DANIEL R. ROBINSON
Chair

APPROVED AS TO FORM

FOR THE ATTORNEY GENERAL:

James F. Carr
JAMES F. CARR, 9343
Assistant Attorney General
Regulatory Law Section

Attorneys for Plaintiff Colorado
State Grievance Board

DISTRICT COURT, JEFFERSON COUNTY, COLORADO

Case No.

95CV2142

95 DEC -4 AM 8:37

STIPULATED ORDER FOR INJUNCTION AND FINAL JUDGMENT
BY CONSENT OF THE PARTIES

FILED
CLERK OF DISTRICT COURT
JEFFERSON COUNTY, CO

THE PEOPLE OF THE STATE OF COLORADO
Ex rel. Gale A. Norton, Attorney General,

Plaintiff,

v.

JEAN A. MAXWELL, M.A.,

Defendant.

Plaintiff Colorado State Grievance Board ("Board" or "plaintiff") filed its complaint in this matter seeking an injunction against defendant, Jean A. Maxwell, M.A. ("defendant" or "Maxwell") pursuant to C.R.S. §12-43-708. Defendant has appeared.

Plaintiff and defendant have consented to the entry of this order for injunction and judgment by consent of the parties. They have done so without trial or adjudication of any issue of fact or law; without this order constituting evidence against or admission by any party with respect to any issue; without defendant either admitting or denying that any of the allegations and grounds contained in the complaint are true; and without waiver by defendant of any defense to the complaint except with respect to the jurisdiction of this Court.

NOW, THEREFORE, upon the basis of the consent of the parties and being duly advised in the premises, before any testimony has been taken in this matter, and without trial or adjudication of any issue of fact or law in this matter, it is hereby

ORDERED, ADJUDGED, AND DECREED AS FOLLOWS:

1. This Court has jurisdiction over the subject matter of this action and over the parties to this action. The complaint alleges claims for relief against defendant under C.R.S. §12-43-708.

2. The provisions of this Order apply to the defendant.

3. As used in this Order, the terms "psychotherapy",

"practice of psychotherapy", "psychotherapy practice", and "engaged in the practice of psychotherapy" have the same meaning and scope the term "psychotherapy" as defined in C.R.S. §12-43-201(9) and the term "unlicensed psychotherapist" has the same meaning and scope as defined in C.R.S. §12-43-201(10).

4. Defendant voluntarily agrees to this stipulated order for injunction and final judgment by consent of the parties. Defendant is hereby immediately enjoined, commencing on the date the Court signs this order, from practicing psychotherapy in the state of Colorado, except under the terms and conditions set forth in this order.

5. Defendant may engage in the practice of psychotherapy in Colorado only under the following conditions:

a. Defendant is not currently practicing psychotherapy in the state of Colorado. Should defendant seek and desire to practice psychotherapy in the state of Colorado at any future time he shall so notify the State Grievance Board and fully comply with the following requirements and terms of this order. Defendant may not commence the practice of psychotherapy until he has been found safe to practice as provided in paragraph 5b and has a practice monitor and therapist (if applicable) approved by the Board.

b. Should defendant seek to practice psychotherapy in the state of Colorado he shall be evaluated by a therapist proposed by defendant and approved by the Board ("evaluator"). The evaluator shall evaluate defendant's ability to engage in the proposed practice of psychotherapy with skill and safety for his clients and in accordance with generally accepted standards of practice. In making this determination the evaluator shall consider the nature of the proposed psychotherapy practice, defendant's educational and experience background as well as his current knowledge and ability to practice psychotherapy. The determination about current knowledge and ability to practice will be based on the education and practice experience obtained by defendant in preparation for the resumption of the practice of psychotherapy. The evaluator shall also determine if defendant's proposed practice is appropriate to his qualifications as well as current knowledge and ability. Such evaluation may include a mental status evaluation if the evaluator deems it appropriate. A mental status evaluation shall be conducted in the manner described in paragraph 5d(iv) below. Should the evaluator find that defendant is safe to practice psychotherapy as proposed, defendant's practice of psychotherapy shall be on probation for a period of at least three years commencing on the Board's acceptance of the practice evaluator's report finding that defendant is safe to practice or the date defendant's practice monitor and/or therapist (if applicable) is approved by the Board, whichever date is later. Defendant can practice psychotherapy only if he complies with the conditions of the probation and has a practice monitor and

therapist (if applicable) in place.

c. Should the practice evaluator determine that defendant is not safe to practice psychotherapy or does not have the appropriate qualifications for the practice he proposes, defendant shall not initiate his psychotherapy practice. Based on the findings and recommendations of the evaluator, the Board shall determine necessary actions that defendant must take and conditions he must meet so that he can be considered safe to practice psychotherapy and qualified to enter into the psychotherapy practice he proposes. Once defendant satisfies the Board that he has taken the appropriate actions and met the conditions so that he is safe to practice psychotherapy, he shall be allowed to practice psychotherapy subject to probation for a period of at least three years commencing on the date the Board determines he is safe to practice or the date defendant's practice monitor and/or therapist (if applicable) is approved by the Board, whichever date is later. Defendant can practice psychotherapy only if he complies with the conditions of the probation and has a practice monitor and therapist (if applicable) in place.

d. The conditions of defendant's probation are:

(i) Defendant will strictly observe the prohibition against dual relationships and assure that he does not have any social or other than professional therapeutic relationship with any client.

(ii) Defendant's practice of psychotherapy must be monitored by a Board-approved practice monitor ("practice monitor"), who both supervises his practice and reports in writing to the Board in accordance with this order.

(a) The practice monitoring must consist of individual face-to-face contact between defendant and his practice monitor that occurs for at least one hour or such longer time as the practice monitor deems necessary for every twenty hours of client contact, but at least once a month. All of defendant's psychotherapy cases will be monitored. During practice monitoring, defendant and his practice monitor must review and discuss each of defendant's active psychotherapy cases at least once every month to allow the practice monitor to determine whether defendant is practicing psychotherapy in accordance with generally-accepted standards of practice and with reasonable skill and safety to his clients.

(b) The practice monitor is authorized to examine and shall examine such client records and case files maintained by defendant as the practice monitor or the Board deems appropriate and necessary to determine whether defendant is practicing psychotherapy in accordance with generally-accepted standards of practice and with reasonable skill and safety to his

clients.

(c) The practice monitor must report the results of supervision to the Board in writing and send a copy of each report to the defendant. The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e., on a monthly basis) for the first 12 reports. After the submission of the first 12 reports, unless otherwise directed by the Board, the practice monitor shall submit her/his reports on the fifth day of every third month (i.e., on a quarterly basis) until the period of probation is successfully completed.

(d) After the Board's written approval of the practice monitor, defendant and his practice monitor shall enter into a written contract for supervision. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The first report must also confirm that the practice monitor has received a copy of this order and of the Board's file; has read these documents; and understands the duties and responsibilities s/he is undertaking as defendant's practice monitor. The practice monitor shall assure that a letter or disclosure statement informing each psychotherapy client that defendant's practice is supervised and giving the name, address, and telephone number of the practice monitor is provided to each client. The first practice monitoring report shall acknowledge that such letter or disclosure statement has been provided to each psychotherapy client.

(e) If the practice monitor is of the opinion that defendant is not practicing psychotherapy with reasonable skill and safety to his clients, the supervisor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the defendant when s/he sends the report to the Board.

(f) Either defendant or his practice monitor may terminate the supervisory relationship on written notice to the other and to the Board not less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of termination, defendant shall not practice psychotherapy until he obtains another Board-approved practice monitor. The new practice monitor's responsibilities shall be in accordance with the provisions of this order.

(iii) Defendant cannot supervise or consult with other persons who are providing psychotherapy to clients unless such supervision or consultation is monitored by defendant's practice monitor in accordance with the provisions of paragraph.

5d(ii).

(iv) Should the evaluator determine that a mental status evaluation is appropriate Defendant shall be examined by an individual approved by the Board who shall evaluate defendant to determine his mental status and whether he should undergo therapy ("therapy evaluator"). As part of the evaluation the therapy evaluator shall be provided the Board's file and pertinent information on this case. Defendant agrees to provide the therapy evaluator with any medical or psychological information requested by the therapy evaluator as part of the evaluation. The therapy evaluator shall provide a written report to the Board setting forth the nature of the evaluation conducted with findings, recommendations on whether defendant should undergo therapy, and a determination of whether defendant can practice psychotherapy in accordance with generally accepted standards of practice and with skill and a safety to his clients. Should the therapy evaluator recommend that defendant does not need to undergo therapy all other requirements of this paragraph 5d(iv) shall not apply to defendant. Should the evaluator recommend that defendant undergo therapy, defendant shall undergo therapy with an individual approved by the Board ("therapist") who both conducts therapy and reports in writing to the Board in accordance with this stipulation and order as follows:

(a) The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every week unless otherwise approved by the Board based on the recommendations of the therapist.

(b) The therapist shall submit a written report to the Board detailing both the progress of the therapy and whether defendant is safe to practice psychotherapy with reasonable skill and safety to his clients. A copy of the report must be sent to the practice monitor and to defendant. The therapist must submit her/his first report by the fifth day of the month following the first full month of therapy after the therapist is approved by the Board. The therapist shall submit subsequent reports by the fifth day of every month thereafter (i.e. on a monthly basis) for the first twelve reports. After the submission of the first twelve reports, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month thereafter (i.e. on a quarterly basis) for the remainder of the probationary period.

(c) In the first report, the therapist shall state that s/he has received and read a copy of this stipulation and order, and the Board's file and that s/he understands the duties and responsibilities s/he is undertaking as defendant's therapist.

(d) If, at any time, the therapy evaluator or the therapist is of the opinion that defendant is practicing psychotherapy in a manner which does not meet generally accepted standards of practice or has a physical or mental disability which render him unable to treat clients with reasonable skill and safety to his clients or which may endanger the health or safety of persons of persons under his care, the therapy evaluator or therapist shall report such opinion to the Board. The therapy evaluator or therapist shall make such report, in writing, within 48 hours of forming such opinion. The therapy evaluator or therapist shall send a copy of such report to the practice monitor and defendant when s/he sends the report to the Board.

(e) Either defendant or his therapist may terminate the therapeutic relationship on written notice to the other and the Board no less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of termination, defendant shall not practice psychotherapy without first obtaining another Board approved therapist, who shall conduct therapy with defendant and report to the Board in accordance with this stipulation and order.

(f) Defendant shall not practice psychotherapy unless he is undergoing therapy, unless and until the Board modifies the requirement that defendant undergo therapy.

(v) Defendant is responsible for the reports due under this order and must take reasonable steps to assure that his practice monitor and therapist (if applicable) report to the Board in accordance with this order. The failure of the practice monitor or therapist (if applicable) to submit the reports to the Board in a timely and regular basis in accordance with the terms of this order may be a violation of this order.

(vi) Defendant must pay all costs and/or expenses incurred for evaluation, practice monitoring, therapy evaluation, therapy (if applicable), and any other expenses incurred in fulfilling the requirements of this order.

(vii) Defendant must provide written notification to each psychotherapy client who begins or resumes psychotherapy with defendant after he is authorized to engage in the practice of psychotherapy, stating that his practice of psychotherapy is being monitored. The written notice shall include the name, address, and telephone number of his practice monitor. Such notice may be provided in a mandatory disclosure statement. Defendant's failure to provide such written notice to each such psychotherapy client may be a violation of this order.

(viii) During the pendency of this order, defendant agrees that he will provide or allow his evaluator, practice monitor, therapy evaluator, or therapist (if applicable) to provide

medical or psychological information to the Board or the Court in the event the evaluator, practice monitor, therapy evaluator, or therapist (if applicable) determines that he is not practicing psychotherapy with reasonable skill and safety to his clients. As part of this stipulation and order defendant explicitly waives his right to maintain confidentiality of medical and psychological records and information provided to his evaluator, practice monitor, therapy evaluator, or therapist (if applicable) if the evaluator, practice monitor, therapy evaluator, or therapist (if applicable) determines that he is not practicing psychotherapy with reasonable skill and safety to his clients.

(ix) Defendant shall submit to a Board-ordered mental and/or physical examination designated by the Board if the Board has reasonable cause to believe that defendant is unable to practice psychotherapy with reasonable skill and safety to clients.

e. Any unfavorable report to the Board from the practice monitor or therapist (if applicable) may be a violation of this order.

6. Defendant may move the Court to modify this injunction after he has practiced psychotherapy under the terms of this order for at least two (2) years. The Court will not entertain a motion to modify this injunction until defendant has practiced psychotherapy under the terms of this order for at least two (2) years. Defendant may move the Court to dissolve this injunction after he has practiced psychotherapy under the terms of this order for at least three (3) years. The Court will not entertain a motion to dissolve this injunction until defendant has practiced psychotherapy under the terms of this order (which includes practicing with a practice monitor and therapist (if applicable) in place) for at least three (3) years.

7. Upon motion of either party, after notice to the other party and opportunity to respond, the Court will consider modifying or dissolving this injunction. Such motion must meet the conditions of paragraph 6 above. In determining whether to modify or dissolve this injunction, the Court will consider at least the following: the reports received from defendant's practice monitor, evaluator, therapy evaluator, and therapist (if applicable); whether defendant has practiced in accordance with generally-accepted standards of practice and with skill and safety to his clients since initiating his practice of psychotherapy; and the likelihood that defendant will practice in accordance with generally-accepted standards of practice and with skill and safety to his clients if permitted to practice psychotherapy without restriction or with reduced restrictions.

8. All time periods and obligations of the probation as stated in this order run only while defendant is engaged in the practice of psychotherapy in Colorado under the supervision of a

Board-approved practice monitor and treatment of a Board-approved therapist (if applicable). They are tolled and suspended at all other times.

9. If, after initiating the practice of psychotherapy as authorized in this order, defendant discontinues the practice of psychotherapy, defendant shall notify the Board, in writing, within thirty (30) days of leaving the practice of psychotherapy, that he has left the practice of psychotherapy and of the date on which he left the practice of psychotherapy. He shall notify the Board, in writing, if he subsequently resumes the practice of psychotherapy. Such communication shall include the date on which he resumed the practice of psychotherapy and his address.

10. In the event defendant moves to another jurisdiction, defendant shall notify the Board, in writing, within thirty (30) days of his move, and provide his new address and of the date on which he relocated.

11. No agreement, understanding, representation, or interpretation not contained in this Order may be used to vary or to contradict its terms.

12. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

13. Each provision of this Order is separate. In the event of litigation involving compliance with the terms of this Order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the Order; and the parties will be obligated by the judicially-construed parts of the Order as if they were part of the original Order.

14. Defendant's failure to comply with this Order may be punished as contempt of Court.

15. The Court retains jurisdiction over this matter.

DEC 6 1995

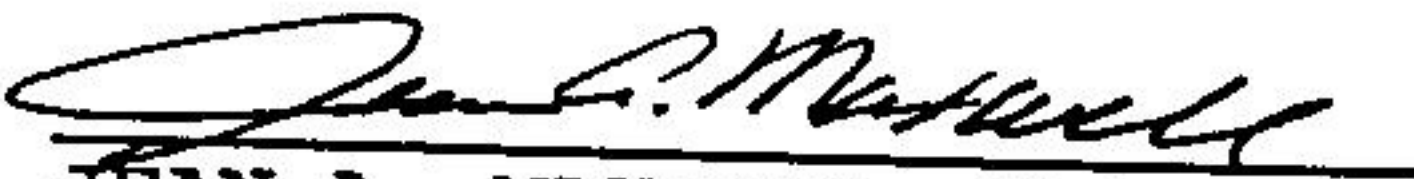
DATED this _____ day of _____, 1995.

Henry E. Nieto
District Court Judge

DISTRICT COURT JUDGE

The parties hereby stipulate, agree, and consent to the terms and conditions of this Order and to its entry. By their signatures, the parties jointly move this Honorable Court to adopt this stipulated order in its entirety as an Order of this Court.

COLORADO STATE GRIEVANCE BOARD


JEAN A. MAXWELL, M.A.
Defendant

By:


DANIEL R. ROBINSON
Board Chair,
Plaintiff

Dated:

11/17/95

Dated:

November 28, 1995

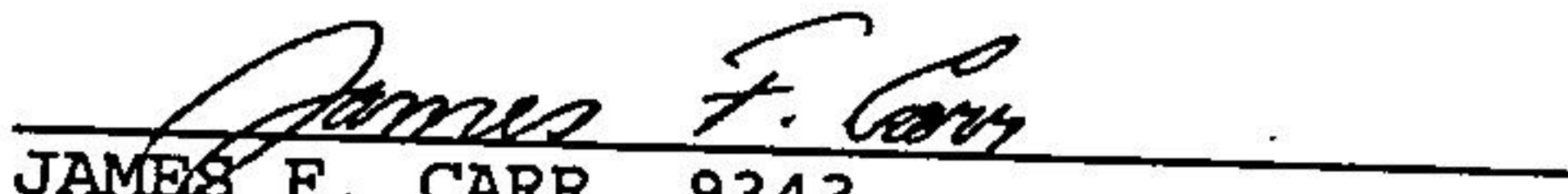
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FOR THE DEFENDANT:


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